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California may soon ban selling new Glocks like the one Kamala Harris owns

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The Democrats who control California's Legislature are poised to ban the sale of one of the most popular types of handguns, like the one owned by arguably the state's most recognizable Democrat, Kamala Harris.

Assembly Bill 1127 aims to prohibit gun shops from selling new Glock-brand handguns and various off-brand imitators, because the guns can become fully automatic if a criminal inserts a converter, commonly known as a "Glock switch," into the weapon. The switches can be made illegally on a 3D printer.

Supporters say the bill targets only a narrow category of guns that are increasingly used in violent crimes. But critics argue the proposal opens the door to broader restrictions on all semi-automatic handguns. That, they say, potentially includes other popular models like the one Gov. Gavin Newsom recently got as a gift from a conservative podcaster. Newsom hasn't indicated whether he'll sign the measure.

Semi-automatic handguns require a shooter to pull the trigger to fire each round. Fully automatic weapons, sometimes called machine guns, will keep firing as long as the trigger is depressed. Automatic weapons are already illegal under state and federal laws for everyone except special permit holders.

Illegally modified, fully-automatic Glock-style handguns have been used in several high-profile shootings, including a 2022 gang gunfight outside a Sacramento nightclub a few blocks from the Capitol. The shooting killed six people and wounded another 12.

But Glocks also are among the most popular handguns sold in California. Gun rights advocates say there are already more than 1 million in circulation in California — and only a tiny fraction of them have been illegally modified. As an example of how popular Glocks are, Harris, while she was running for president, told "60 Minutes" last year that she owned a Glock and that she had shot it. A Harris spokesperson didn't respond to interview requests or to a question about whether she still owns the gun.

The pending proposal would not prohibit Harris or others who already own Glocks from keeping theirs. They could also sell used ones to others in private-party transactions. Californians just couldn't buy a new one. It's unclear how many Glocks are sold in California each year since regulators and gun manufacturers don't publicly report statewide sales numbers.

Police widely carry Glocks in California, but they would be exempt from the restrictions.

What about Gavin Newsom's new gun?

The measure's lead author, Assemblymember Jesse Gabriel, a Democrat representing the Encino area, told the Senate Judiciary Committee this month that if gun manufacturers don't like the ban, they can redesign their weapons to make them less easy to convert to machine guns.

"Most handgun designs don't have this issue, and this legislation is narrowly focused on a limited number of designs that are exceptionally easy to modify," he said. "Sadly, certain actors in the gun industry have known about this issue for decades and have refused to do anything meaningful to address it."

Gun rights advocates say Glock has already redesigned new models to be incompatible with the switches, but the California Department of Justice hasn't included those weapons on its list of handguns that can be purchased in the state.

More than two dozen states, including California, have already banned Glock switches, but California would be the first state to ban the gun. A similar bill introduced in New York has stalled in the state's Senate.

The California bill, which has 12 Democratic co-authors and co-sponsors, has already passed the Assembly with only Republicans voting against it. It's poised to do the same in the Senate, putting it on a path next month to go to the desk of the state's newest high-profile handgun owner, Newsom.

This month, conservative podcaster Shawn Ryan gave Newsom a Sig Sauer P365-Xmacro handgun while the two recorded an hourslong podcast in Tennessee.

The handgun wouldn't fall under the provisions of AB 1127. The weapon's mechanisms are designed differently than a Glock's and switches made for Glocks don't work.

But Sam Paredes, the executive director of Gun Owners of California, which opposes the bill, said it's possible someone could design an illegal converter for Newsom's gun some day. Plus, many semi-automatic handguns can be converted to fully automatic with the right tools and know-how, if someone wants to risk a felony charge.

He said it will be up to the office of Attorney General Rob Bonta to decide what handguns to ban for sale in California, should Newsom sign Gabriel's bill into law. Bonta supports the proposal. Bonta's office didn't return a message, but in a letter in support of the bill he wrote that "California has one of the lowest rates of firearms deaths in the nation and that is due to our strong common sense gun safety laws."

"These laws are effective and save lives," Bonta wrote. "Prohibiting this dangerous design flaw is an integral step in keeping automatic weapons off our streets."

Gun advocates don't like Newsom

Asked if he will sign the ban on new Glocks, Newsom's press office said that his office doesn't usually comment on pending legislation.

"The governor left the firearm in Tennessee in Shawn's possession," said Newsom spokesperson Izzy Gardon. "He is working to ensure it is properly transferred in accordance with California law and will take possession once that process is complete."

It would be the first firearm registered under Newsom's name, according to The San Francisco Standard.

If Newsom wants to legally keep the Sig Sauer, he'd have to ship it from a Tennessee gun dealer to a registered firearms dealer in California.

Once the gun arrives, Newsom would have to pass a background check, provide his fingerprints, take a handgun safety test, sign affidavits, provide a driver's license and documents that contain his name and address, such as a current utility bill. He'd need to undergo a 10-day waiting period.

Paredes said Newsom would also have to pay around $300 in fees and taxes on the $700 gun.

He'd have to do everything himself, as gun owners need to appear in person to do the paperwork.

Paredes said he doesn't expect Newsom to get a warm welcome if he goes to any California gun shop to make the transfer. Newsom is one of the nation's most ardent advocates of firearms ownership restrictions, and he's backed some of the laws that make acquiring his gun — and any ammunition he'd want to shoot — so challenging and costly.

"I'll bet you there'll be 10,000 people (protesting) at that gun store the day he comes in to do that," Paredes said.

When Ryan gave Newsom the Sig Sauer, Newsom told the podcaster that though he continues to support gun regulations that he said have made the state safer, he's "not anti-gun at all."

"The last thing people would expect is that I respect this gift," he said, according to The San Francisco Standard.

At least one gun shop employee isn't buying it.

Cassidy Maznio, assistant manager at Sacramento Black Rifle, a firearms dealer, said Newsom is welcome to come to the shop to process his gun transaction.

"Obviously, we'd talk trash to him the whole time," Maznio said.

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